

dismissal of the action. The clerk of the court is directed to serve plaintiff by mail a notice of Order to Show Cause and a copy of this order.

9. S-CV-0054351 Garvey-Altizer, Cheryl v. County of Placer

Motion for Leave to file Third Amended Complaint

Plaintiff requests leave to file a third amended complaint, which will repeat the allegations brought in the first amended complaint. Defendants Johnnie Hardy and Ruth Mary Hardy did not file a response. Defendants City of Lincoln and County of Placer do not oppose the motion, as long as the City and County are dismissed from the lawsuit with prejudice. The court grants plaintiff's motion for leave to file a third amended complaint. Plaintiff shall file and serve a third amended complaint on or before June 26, 2026.

10. S-CV-0055515 Henschel, Matthew v. Hengl, Kevin

The motion for disgorgement is dropped from calendar in light of the notice of withdrawal filed on May 6, 2026.

11. S-CV-0056157 Saetern, Tracy v. Donohue, Marty Wayne

Application for a Right to Attach Order ("RTAO")

Plaintiff seeks a RTAO and issuance of a writ of attachment as against defendant Marty Wayne Donohue in the amount of \$159,695.29 pursuant to Code of Civil Procedure section 483.010.

Code of Civil Procedure section 484.010 requires that prior to a writ being issued, the defendant must be served a copy of the summons and complaint as well as the notice of application and hearing and supporting documents. While the proof of service attached to the notice of application and hearing for RTAO shows service of the moving papers on defendant Marty Wayne Donohue by mail, a review of the court's file reveals insufficient evidence of the operative complaint. The proof of service filed December 24, 2025 purporting to show service of summons and complaint on defendant Donohue is deficient as it is unsupported by a declaration of diligence as required by Code of Civil Procedure section 415.20(b). The proof of service attached to the first amended complaint shows mailed service only which, in light of the deficient service of the initial complaint, is likewise deficient.

Additionally, plaintiff seeks to attach partnership assets. Plaintiff provides no explanation or briefing as to why service of this application should not be required as to the partner.

Aside from these procedural deficiencies, a RTAO may be issued for a claim for money based on contract of an amount based on contract where the total amount is fixed or readily ascertainable not less than \$500. (Code Civ. Proc., § 483.010, subd. (a).)

Ascertainable damages must be measurable by the contract or by reference to the contract itself and the basis for computing damages must be reasonable and certain. (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc.* (2004) 115 Cal.App.4th 537, 541.) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.) At a noticed hearing, the court shall issue a RTOA if it finds all of the following: (1) an attachable claim, (2) probable validity of the claim, (3) proper purpose, and (4) the amount to be secured by attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a)(1–(4).) The amount plaintiff seeks to attach appears to be based not on the disgorgement damages but primarily on the cost of repair or replacement. As the cost of repair or replacement is not based on an agreement between the parties but rather between plaintiff and a third-party, this is not an ascertainable amount.

Based on the foregoing, the application is denied.

12. S-CV-0056415 James E Williams & Son v. Moreland, Christopher G

Order to Show Cause re Preliminary Injunction

In light of plaintiff’s request to remove this hearing from calendar (filed May 29, 2026) and defendant JP Morgan Chase Bank’s similar filing (filed June 1, 2026), the court drops the order to show cause hearing from calendar. No preliminary injunction shall issue and the temporary restraining order issued by this court on May 1, 2026 is hereby dissolved.

13. S-CV-0056665 Gardner, Cheryl Fornear v. Hyundai Motor America

The moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant’s Motion to Compel Arbitration and Motion to Stay

Defendant’s request for judicial notice is granted.

Plaintiff’s objection No. 1 as to Rao Decl. ¶ 5 is sustained as to the reference to plaintiff. Plaintiff’s objection No. 2 as to Rao Decl. ¶ 6 is sustained as to references to plaintiff in lines 14-22 and overruled as to lines 23-26.

Procedural History

On December 3, 2025, plaintiff filed a complaint regarding the purchase of a 2020 Hyundai Sonata with three causes of action against defendant Hyundai Motor America, for breach of express warranty; breach of implied warranty; and violation of the Song Beverly consumer warranty act. On January 23, 2026, defendant moved to compel arbitration alleging the warranty and Hyundai’s Bluelink services included a binding arbitration provision. Plaintiff opposes this motion.